

VCU331588 Zachary, Marshall vs. California Cemetery and Funeral Services, LLC

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-31

Motion: Motion for Leave to File Amended Complaint

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Re: Zachary, Marshall vs. California Cemetery and Funeral Services, LLC

Case No.: VCU331588

Date: August 31, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion for Leave to File Amended Complaint

Tentative Ruling: To grant the motion and order the proposed amended complaint filed no later than ten (10) days from the date of this hearing.

Facts

In this matter, Plaintiff's original complaint, filed February 17, 2026, alleges causes of action for discrimination, failure to participate in interactive process, failure to provide reasonable accommodation, hostile work environment, retaliation, failure to prevent, violations of CFRA, IIED, negligent hiring, defamation and wrongful termination.

Defendants Pablo Silva, California Cemetery and Funeral Services, LLC and SCI California Funeral Services, Inc. answered the complaint on March 30, 2026.

On August 5, 2026, Plaintiff filed this motion for leave to file an amended complaint to add three (3) causes of action for Discrimination Based on Sex; Retaliation (Labor Code § 98.6); and Retaliation (Labor Code § 1102.5) and to remove the cause of action for IIED.

In support, Plaintiff provides a red-line version of the proposed amended complaint as well as a description of the additions and deletions by page and line number.

Plaintiff's counsel's declaration stats that the parties engaged in written discovery in April 2026, received documents responsive to the discovery, but that "...complaints by Plaintiff and other employees regarding Silva (who is a Regional Manager), as well as disciplinary measures taken against Silva, were omitted from the production." (Declaration of Chang ¶4.) Counsel states further that, upon conferring with Plaintiff, it was found that "Silva gave preferential work treatment to female employees, and disfavored male employees, in terms of scheduling, support, and work assignments, and engaged in removal practices that are in violation of regulations governing funeral homes/services." (Declaration of Chang ¶4.)

In opposition, Defendant challenges the substantive merits of the sixth and fourteenth causes of action.

Authority and Analysis

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296 ["[T]here is a strong policy in favor of liberal allowance of amendments."].) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court.

Rule 3.1324 regulates the content of the motion and supporting declaration as follows:

"(a) Contents of motion

A motion to amend a pleading before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and

(4) The reasons why the request for amendment was not made earlier.”

Here, subsection (a) is satisfied via the description and citation to the changes in the proposed amended complaint and the attached redline version. Additionally, the Court finds subsection (b) has been complied with, noting the additional causes of action, the removal of the IIED claim, the discovery of these additional theories and allegations in support thereof via discovery and the relatively short period of time between the discovery responses and the filing of this motion.

Given the close relation of the proposed amendments to the activities and transactions stated in the initial Complaint, the Court can discern no prejudice to Defendants by permitting the proposed amended complaint.

As to the substantive arguments raised by Defendants, the Court will not generally consider the validity of the proposed amended pleading in ruling on a motion for leave as “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (California Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 281 disapproved of on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390.)

Therefore, the Court grants the motion and orders the proposed amended complaint filed no later than ten (10) days from the date of this hearing.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.